

# Constitutional Development in British India

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## **Indian Councils Act 1892 and Morley–Minto Reforms 1909**

### **Introduction**

The constitutional development of British India was a gradual process through which the British government introduced limited changes in the structure and working of government. These reforms did not establish responsible government, but they created opportunities for Indian participation in legislative councils. The Indian Councils Act of 1892 and the Morley–Minto Reforms of 1909 were important stages in this development. The former expanded the councils and introduced an indirect form of representation, while the latter formally recognized elections and introduced separate electorates for Muslims. Together, these reforms increased political awareness and strengthened the demand for greater constitutional rights.

### **Background of Constitutional Reforms**

After the establishment of British rule, the government of India remained largely under the control of the Governor-General and his executive officials. Legislative councils existed, but their powers were limited and their members were mainly nominated by the government. Indian participation was therefore restricted, and the councils could not exercise effective control over the executive.

The formation of the Indian National Congress in 1885 marked an important change in Indian political life. Educated Indians began demanding greater representation, administrative reforms, and opportunities to participate in government. They argued that Indians should have a voice in matters affecting their own country. The British government responded through limited constitutional concessions, beginning with the Indian Councils Act of 1892.

### **Indian Councils Act 1892**

The Indian Councils Act 1892 was passed by the British Parliament to amend the earlier Indian Councils Act of 1861. Its main purpose was to enlarge the legislative councils and provide a limited opportunity for Indian representation. Although the Act did not introduce direct elections, it recognized an important principle: certain members of the councils could be selected through recommendations made by representative bodies.

The Act increased the number of additional members in the Governor-General's Legislative Council from twelve to sixteen. It also enlarged the provincial councils. The Governor-General was authorized to invite various bodies in India to recommend, elect, or delegate representatives for appointment to the councils. These bodies included municipalities, district boards, universities, and chambers of commerce. In this way, the Act created an indirect system of representation.

### **Main Provisions of the Act**

One of the most important provisions was the enlargement of the legislative councils. This allowed more Indians to participate in legislative discussions. The Act also permitted members to ask questions about public matters, although their powers remained limited.

Another important provision was the right to discuss the annual budget. Members could express their opinions on financial matters and criticize government policies. However, they could not vote on the budget or compel the government to accept their recommendations. The councils therefore remained advisory rather than responsible bodies.

The Act also introduced the principle of indirect election. Although the word “election” was not formally used in the statute, representative institutions were allowed to recommend members. This was a significant development because it established the foundation of electoral representation in British India.

### **Limitations of the Indian Councils Act 1892**

Despite its importance, the Act had serious limitations. It did not provide for direct elections, universal representation, or responsible government. The British executive continued to dominate the administration, and the councils could not effectively control the Governor-General or provincial governors.

The franchise was extremely limited, and only a small number of Indians could participate in the selection of representatives. The councils could discuss public issues, but their resolutions were advisory and could be ignored by the government. Consequently, Indian nationalists considered the Act inadequate because it did not satisfy their demand for genuine political participation.

### **Significance of the Act**

The Indian Councils Act 1892 was nevertheless an important milestone. It expanded the legislative councils, increased Indian participation, and introduced the principle of indirect representation. It also encouraged political education and strengthened the constitutional methods of the Indian National Congress.

The Act demonstrated that constitutional reforms could be achieved through political pressure and negotiation. However, its limited nature also convinced many Indian leaders that further reforms were necessary. These developments prepared the ground for the more extensive Morley–Minto Reforms of 1909.

### **Morley–Minto Reforms 1909**

The Morley–Minto Reforms, officially known as the Indian Councils Act 1909, were introduced during the administration of Lord Minto, the Viceroy of India, and John Morley, the Secretary of State for India. The reforms were intended to increase Indian participation in government while preserving British control. They were introduced in response to growing nationalist demands and political unrest.

The reforms were also influenced by the demands of Muslim political leaders. In 1906, the Simla Deputation, led by Aga Khan, presented Muslim political demands to Lord Minto. They requested separate representation for Muslims and recognition of their political interests. The reforms subsequently introduced separate electorates for Muslims, making this one of their most significant and controversial features.

### **Main Features of the Morley–Minto Reforms**

The first major feature was the expansion of the central and provincial legislative councils. The membership of the Governor-General’s Legislative Council was increased, and the provincial councils were also enlarged. This provided greater opportunities for Indian participation in legislative discussions.

The second major feature was the formal introduction of elections. The Act recognized the principle of election for the first time in a British Indian constitutional statute. However, the elections were indirect in many cases, and the franchise remained limited. Representation was based on special interests and groups rather than universal territorial constituencies.

The third major feature was the introduction of separate electorates for Muslims. Under this system, Muslim voters elected Muslim representatives. This gave Muslims a distinct political voice, but it also strengthened communal divisions in Indian politics. The system later became an important part of the constitutional debate surrounding the demand for Pakistan.

The fourth feature was the expansion of legislative functions. Members were allowed to ask questions and supplementary questions, discuss the budget, and move resolutions on matters of public interest. These changes increased the importance of the councils, although the executive was not bound by their decisions.

### **Indian Representation in Executive Councils**

The reforms also allowed greater Indian participation in executive councils. Satyendra Prasad Sinha became the first Indian member of the Viceroy's Executive Council. This was an important symbolic development because it demonstrated that Indians could occupy senior positions in the central administration. However, the executive remained responsible to the British authorities rather than to elected representatives.

### **Evaluation of the Morley–Minto Reforms**

The Morley–Minto Reforms were more advanced than the Indian Councils Act of 1892, but they still fell far short of responsible government. The central legislative council retained an official majority, while the provincial councils received a non-official majority. Even where Indians were represented, the executive retained extensive powers and could reject resolutions.

The reforms also disappointed nationalists because they did not establish parliamentary government. John Morley himself made it clear that the reforms were not intended to introduce a British-style responsible government in India. As a result, the demand for self-government continued to grow.

## **Montagu–Chelmsford Reforms 1919**

### **Introduction**

The Montagu–Chelmsford Reforms of 1919 were a major stage in the constitutional development of British India. They were introduced through the Government of India Act 1919, which expanded Indian participation in government and introduced important changes in both central and provincial administration. The reforms were named after Edwin Montagu, the Secretary of State for India, and Lord Chelmsford, the Viceroy of India. Their recommendations were intended to move India gradually toward responsible government, although they did not establish complete self-government.

### **Background of the Reforms**

The Morley–Minto Reforms of 1909 had failed to satisfy Indian political demands. Although they increased the size of legislative councils and introduced elections, the executive remained largely independent of elected representatives. Indian nationalists continued to demand responsible government and greater control over administration.

The First World War created new political circumstances. India contributed soldiers, resources, and financial support to the British war effort. Indian leaders expected that these contributions would be followed by meaningful constitutional reforms. At the same time, political awareness increased, and the demand for self-government became stronger.

In August 1917, Edwin Montagu announced that the British government's objective was the gradual development of self-governing institutions in India, leading to the progressive realization of responsible government. This declaration became the foundation of the Montagu–Chelmsford constitutional reforms.

### **The Montagu–Chelmsford Report**

Montagu and Chelmsford prepared a report on constitutional reforms, which was published in 1918. The report examined the political situation in India and proposed changes in the structure of government. It recommended

greater Indian participation in administration, the expansion of legislative councils, and the introduction of responsible government at the provincial level.

The reforms were based on the idea that Indians should gradually be trained in the practices of parliamentary government. However, the British government did not agree to transfer complete power to Indian representatives. The reforms therefore created a system of limited responsibility rather than full democratic government.

## **Government of India Act 1919**

The recommendations of the Montagu–Chelmsford Report were implemented through the Government of India Act 1919. The Act was passed by the British Parliament and introduced significant constitutional changes. It expanded the central legislature, created a bicameral system, and introduced dyarchy in the provinces.

## **Provincial Dyarchy**

The most important feature of the 1919 reforms was the introduction of dyarchy, or dual government, in the provinces. Under this system, provincial subjects were divided into two categories: reserved subjects and transferred subjects.

Reserved subjects included important areas such as law and order, finance, and land revenue. These subjects remained under the control of the Governor and his executive council. The executive council was not responsible to the elected provincial legislature.

Transferred subjects included areas such as education, public health, local government, and agriculture. These subjects were administered by Indian ministers who were responsible to the provincial legislative councils. This was the first major attempt to introduce responsible government at the provincial level.

## **Working of Dyarchy**

The system of dyarchy was intended to provide Indians with experience in administration. Indian ministers could manage transferred departments and answer questions in the provincial legislatures. However, their powers were limited because the Governor retained control over reserved subjects.

The Governor also possessed special powers, including the authority to intervene in provincial administration. The system therefore created a division between departments that were administered by Indian ministers and departments that remained under British control. This arrangement made the provincial government complex and often ineffective.

## **Central Legislature**

The Government of India Act 1919 introduced a bicameral legislature at the centre. The central legislature consisted of two chambers: the Council of State, which was the upper house, and the Legislative Assembly, which was the lower house.

The Council of State had 60 members, while the Legislative Assembly had 145 members. A significant proportion of members were elected, but the franchise remained limited and the Governor-General retained extensive powers. The central executive was not responsible to the legislature.

## **Expansion of Franchise**

The reforms introduced direct elections to the central and provincial legislatures. However, the right to vote was not universal. The franchise was based mainly on property qualifications, tax payments, and other eligibility requirements. As a result, only a small section of the population could participate in elections.

The limited franchise meant that the reforms did not establish a democratic system. Nevertheless, direct elections were an important development because they increased political participation and encouraged the growth of political parties and electoral institutions.

### **Separation of Central and Provincial Subjects**

Another important feature of the 1919 reforms was the separation of central and provincial subjects. The Act divided administrative responsibilities between the central government and the provinces. This was intended to reduce excessive central control and allow provincial governments to manage local matters more effectively.

However, the central government retained considerable authority over important matters. The provinces were not fully autonomous, and the Governor-General continued to exercise significant powers. The reforms therefore introduced decentralization without establishing complete provincial independence.

### **Separate Electorates**

The Montagu–Chelmsford Reforms continued the system of separate electorates introduced by the Morley–Minto Reforms. Muslims and certain other communities were represented through separate electoral arrangements.

Separate electorates were intended to protect minority interests, but they also reinforced communal divisions. Political representation increasingly became connected with religious and social identities. This development had a lasting impact on the constitutional and political history of British India.

### **Powers of the Governor-General**

Although the reforms expanded the legislature, the Governor-General retained extensive powers. He could veto legislation, issue ordinances, and intervene in important matters. The central executive was not responsible to the elected members of the legislature.

This meant that the reforms did not establish responsible government at the centre. The British government continued to control the most important areas of administration, including defence, foreign affairs, and financial policy.

### **Importance of the Reforms**

The Montagu–Chelmsford Reforms were important because they introduced several new constitutional principles. They expanded the legislative councils, introduced direct elections, established bicameralism at the centre, and introduced dyarchy in the provinces.

They also increased Indian participation in government and provided experience in legislative and administrative work. The reforms encouraged political education and helped develop the institutions that later became important in the struggle for independence.

### **Limitations of the Reforms**

Despite their importance, the reforms had serious weaknesses. The system of dyarchy was complicated and ineffective because the Governor retained control over reserved subjects. Indian ministers had limited authority and could not fully implement their policies.

The central government remained largely under British control, and the Governor-General possessed extensive powers. The franchise was also limited, excluding the majority of the population from political participation. Therefore, the reforms did not satisfy the demand for responsible government.

### **Reaction of Indian Nationalists**

Indian nationalists welcomed the reforms as a step toward constitutional development, but they were disappointed by their limited nature. The reforms did not provide complete self-government, and the British executive continued to dominate the administration.

Many Indian leaders argued that the reforms were insufficient because they did not establish responsible government at the centre. The shortcomings of the Act contributed to the continued struggle for greater constitutional rights and eventually led to further reforms in 1935.